IN THE NATIONAL COMPANY LAW TRIBUNAL

KOLKATA BENCH

KOLKATA

CA (CAA) NO.1427/KB/2019

In the matter of:

An application under sections 230 to 232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016

AND

In the Matter of:

SIVSAMBHU ISPAT PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3 WOOD STREET, 2ND FLOOR, FLAT NO.1, GOVIND MAHAL, KOLKATA -700016, West Bengal;

AND

In the Matter of:

ARYADEEP COMMERCIAL PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3 WOOD STREET, FLAT NO.1, 2ND FLOOR, GOVIND MAHAL, KOLKATA-700016, West Bengal;

AND

In the matter of:

GOODSHINE TRADERS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, FLAT NO.1, 2ND FLOOR, GOVIND MAHAL, KOLKATA-700016, West Bengal ;

AND

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In the matter of:

IDEAL TRADECOM PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, FLAT NO.1, 2ND FLOOR, GOVIND MAHAL, KOLKATA-700016, West Bengal ;

AND

In the matter of:

NISHA ABASAN PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, 2ND FLOOR, FLAT NO.1 , GOVIND MAHAL, KOLKATA-700016, West Bengal;

AND

In the matter of:

NISHA ESTATES PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, FLAT NO.1, 2ND FLOOR, GOVIND MAHAL, KOLKATA-700016, West Bengal;

AND

In the matter of:

NISHA MERCANTILE PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3 WOOD STREET, 2ND FLOOR, FLAT NO.1 , GOVIND MAHAL , KOLKATA-700016, West Bengal ;

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AND

In the matter of:

SHIVAM LOHH PRODUCT PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3 WOOD STREET, 2ND FLOOR, FLAT NO.1 , GOVIND MAHAL, KOLKATA-700016, West Bengal;

AND

In the matter of:

SILVERPOINT DEALERS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, 2ND FLOOR, FLAT NO.1 , GOVIND MAHAL, KOLKATA -700016, West Bengal;

AND

In the matter of:

SIVSAMBHU COKES PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, 2ND FLOOR, FLAT NO.1 , GOVIND MAHAL, KOLKATA -700016, West Bengal;

AND

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In the matter of:

SWATI BUSINESS (INDIA) PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, 2ND FLOOR, FLAT NO.1 , GOVIND MAHAL, KOLKATA -700016, West Bengal;

AND

In the matter of

VINAYAK INFOSOFT PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 3, WOOD STREET, 2ND FLOOR, FLAT NO. 1, GOVIND MAHAL, KOLKATA -700016, West Bengal;

AND

In the matter of:

1. SIVSAMBHU ISPAT PRIVATE LIMITED
   (TRANSFEREE COMPANY)
2. ARYADEEP COMMERCIAL PRIVATE LIMITED
   (TRANSFEROR COMPANY NO. 1)
3. GOODSHINE TRADERS PRIVATE LIMITED
   (TRANSFEROR COMPANY NO. 2)
4. IDEAL TRADECOM PRIVATE LIMITED
   (TRANSFEROR COMPANY NO. 3)
5. NISHA ABASAN PRIVATE LIMITED
   (TRANSFEROR COMPANY NO. 4)
6. NISHA ESTATES PRIVATE LIMITED
   (TRANSFEROR COMPANY NO. 5)

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7. NISHA MERCANTILE PRIVATE LIMITED
(TRANSFEROR COMPANY NO. 6)

8. SHIVAM LOHH PRODUCT PRIVATE LIMITED
(TRANSFEROR COMPANY NO. 7)

9. SILVERPOINT DEALERS PRIVATE LIMITED
(TRANSFEROR COMPANY NO. 8)

10. SIVSAMBHU COKES PRIVATE LIMITED
(TRANSFEROR COMPANY NO. 9)

11. SWATI BUSINESS (INDIA) PRIVATE LIMITED
(TRANSFEROR COMPANY NO. 10)

12. VINAYAK INFOSOFT PRIVATE LIMITED
(TRANSFEROR COMPANY NO. 11)

.... APPLICANTS.

Coram : Shri Jinan K.R., Hon'ble Member (J) &
Shri Harish Chander Suri, Hon'ble Member (T)

COUNSELS ON RECORD:

1. Mrs. Manju Bhuteria, Advocate
2. Mr. Madan Kumar Maroti , FCA
3. Mr. N. Gurumurthy , FCA
4. Ms. Aisha Amin, Advocate

Date of pronouncement of order: 6th November,2019

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ORDER

Per Shri Jinan K.R, Hon'ble Member(J):

1. This application has been filed under Section 230-232 of the Companies Act, 2013 by the Applicant Companies viz. Aryadeep Commercial Private Limited, Goodshine Traders Private Limited, Ideal Tradecom Private Limited, Nisha Abasan Private Limited, Nisha Estates Private Limited, Nisha Mercantile Private Limited, Shivam Lohh Product Private Limited, Silverpoint Dealers Private Limited, Sivsambhu Cokes Private Limited, Swati Business (India) Private Limited, Vinayak Infosoft Private Limited (Transferor Companies) Sivsambhu Ispat Private Limited (Transferee Company) their respective shareholders for obtaining sanction of this Tribunal regarding Scheme of Amalgamation proposed to be made between the Transferee Compnay and the Transferor Companies. A copy of the Scheme of Amalgamation has been annexed with the application as Annexure 'Y'.

2. It is stated in the application that the reasons that have necessitated and/or justified the said Scheme of Amalgamation are, inter alia as follows:-

   a) Apart from pursuing its main object, all the Transferor Companies and the Transferee Company are inter-alia engaged in trading of garments and has also deployed their surplus fund which is not immediately required in other investable instruments. The

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business of the Transferor Companies and the Transferee Company can be combined/adjusted and carried forward conveniently with combined strength;

b) The amalgamation will enable the Transferee Company to consolidate its line of business by restructuring and re-organizing its business activities and Capital Structure;

c) The amalgamation will enable the amalgamated company to broad base their business activities under the roof of the Transferee Company;

d) The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration in better and more productive utilization of various resources;

e) The business of the Companies can be conveniently and advantageously combined together in general business of the Company concerned and will be carried on more economically and profitably under the said Scheme;

f) The said Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of the business of the company concerned. The said scheme will also enable the undertakings and business of the said applicant company to obtain greater facilities possessed and enjoyed by one large company compared with a number of small Companies for raising

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capital, securing and conducting trade on favorable terms and other benefits;

g) The said scheme will contribute in furthering and fulfilling the objects of the Company concerned and in the growth and development of these businesses;

h) The said scheme will strengthen and consolidate the position of the amalgamated company and will enable the amalgamated company to increase its profitability;

i) The said scheme will enable the undertakings concerned to pool their resources and to expand their activities;

j) The said scheme will enable the Companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

k) The said scheme will have beneficial results for the Companies concerned, their shareholders, employees and all concerned.

3. It is stated that the Board of Directors of all Applicant Companies have, at their respective Board Meetings held on 26th August, 2019, 27th August, 2019 and 28th August, 2019 by a resolution passed unanimously, approved the Scheme of Amalgamation. The Board of Resolution is annexed with the application Annexure 'Z'.

4. It is stated in the application that the assets of the applicant companies are sufficient to meet all their liabilities and the said scheme

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will not adversely affect the rights of any of the creditors of any of the applicant companies in any manner whatsoever.

5. The Transferee Company and Transferor Companies have never issued nor agreed to issue any debenture.

6. It is stated in the application that there are no proceedings pending under Section 235 to 251 of the Companies Act, 1956 and Section 217, 219, 221, 224 and 225 of the Companies Act, 2013 against any of the applicant companies.

7. It is stated in the application that the total number of Equity Shareholders in the Transferee Company are 5 and Transferor Company No.1 are 4, Transferor Company No.2 are 4, Transferor Company No.3 are 3, Transferor Company No.4 are 4, Transferor Company No.5 are 3, Transferor Company No. 6 are 4, Transferor Compnay No.7 are 3 Transferor Company No.8 are 3, Transferor Company No.9 are 3, Transferor Company No. 10 are 3, Transferor Company No. 11 are 6, Transferor Company No.12 are 3. Ld. Counsel for the applicant companies submit that each and every shareholder of the applicant companies and creditors of the applicant companies have considered and have given their consent in writing by way of affidavit agreeing to the Scheme holding and convening of the meetings of the shareholders of the applicant companies does not arise.

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8. It is further stated in the application that Transferee Company has NIL Secured Creditor and 10 (Ten) Unsecured Creditors. Transferor Company No. 1 has Nil Secured and 4 (Four) unsecured Creditors , Transferor Company No. 2 has NIL Secured Creditor and 5(Five) Unsecured Creditors, Transferor Company No. 3 has NIL Secured Creditor and 11(Eleven) Unsecured Creditors , Transferor Company No. 4 has NIL Secured Creditor and 7(Seven) Unsecured Creditors, Transferor Company No. 5 has NIL Secured Creditor and 6(Six) Unsecured Creditors, Transferor Company No. 6 has NIL Secured Creditor and 6(Six) Unsecured Creditors, Transferor Company No. 7 has NIL Secured Creditor and 6(six) Unsecured Creditors, Transferor Company No.8 has NIL Secured Creditor and 10(Ten) Unsecured Creditors , Transferor Company No. 9 has NIL Secured Creditor and 6(Six) Unsecured Creditors, Transferor Company No.10 has NIL Secured Creditor and 6(Six) Unsecured Creditors, Transfeor Company No. 11 has NIL Secured Creditor and 5(Five) Unsecured Creditors.

9. Ld. Counsel further submits, that all the shareholders and creditors, of the applicant companies have given affidavit annexed with the application relating to no.-objection to the Scheme convening and holding of individual meetings of the shareholders and creditors of the applicant companies may be dispensed with.

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10. Heard Ld. Counsel for the applicants. Perused the record annexed with the application. In view of absence of any objection and since all the requisite compliance has been fulfilled, the following order is passed:-

ORDER

i. In view of the individual affidavit given by the shareholders of all the applicant companies, meeting of the shareholders of the applicant companies is hereby dispensed with;

ii. In view of the fact that there are Nil Secured Creditors of the Transferee Company and Transferor Company. Therefore, the question of holding meeting of the Secured creditors does not arise, hence dispensed with.

iii. In view of the fact that the Transferee Company and Transferor Companies as Unsecured Creditors representing more than 90% of each Applicant Company have given their written consent by way of Affidavit. Therefore, question of holding meeting of Unsecured creditors does not arise, hence dispensed with.

iv. The petitioner companies shall serve notice of the petition on the following authorities, namely,

   a. Central Government, through Regional Director, Eastern Region, Ministry of Corporate Affairs, Kolkata;
   b. Registrar of Companies, West Bengal;
   c. Official Liquidator, High Court, Calcutta;
   d. Income Tax Department of the Office having jurisdiction over the respective Applicant companies;
   e. Reserve Bank of India;

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f. Competition Commission of India;

Pursuant to Section 230(5) of the Companies act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, with suitable changes in notice relating to waiver of meetings and such other relevant and secotoral regulators/authorities, if applicable which are likely to be affected by the proposed said Scheme by sending the same by hand delivery, through special messenger or by registered post or speed post within 7 days from the date of this order filing their representations, if any on the petition. Notice along with the copy of the application and other related documents along with PAN of the applicant Companies should be served upon the Chief Commissioner of Income Tax Department by e-mail and Speed Post or by Messenger. Applicant Companies are also directed to mention their respective PAN number everywhere.

v. The Applicants shall file affidavit within 14 days of serving the notice regarding the service of notice.

vi. If no response is received by the Tribunal from the above authorities within 30 days of date of receipt f the notice it will be presumed that such authorities have no objection to the proposed Scheme as per rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

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vii. Liberty is given to file joint petition by the Applicant Companies in accordance with Rule 15 of the Companies (Compromises, Arrangements and Amalgamations) Rules,2016.

viii. An affidavit of compliance of all the conditions laid down herein along with original proof of service to all authorities to be filed jointly by the Applicant Companies.

11. The Application being CA (CAA) No. 1427/KB/2019 is disposed of accordingly.

12. Urgent certified copies of this order, if applied for, be supplied to the parties upon compliance of all requisite formalities.

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(Harish Chander Suri)

Member(T)

Sd 6/11/19

(Jinan K.R)

Member(J)

Signed on the, 6th November,2019

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